

Warsaw, September 22, 2022

Decision

DKE.561.23.2022

Pursuant to Article 104 § 1 of the Act of June 14, 1960, the Code of Administrative Procedure (Journal of Laws 2021, item 735, as amended) in connection with Article 7(1) and (2) and Article 60 of the Act of May 10, 2018, on the protection of personal data (Journal of Laws 2019, item 1781) and based on Article 58(2)(b) in connection with Article 31 and Article 58(1)(a) and (e) of the Regulation of the European Parliament and of the Council (EU) 2016/679 of April 27, 2016, on the protection of natural persons in relation to the processing of personal data and on the free movement of such data and repealing Directive 95/46/EC (General Data Protection Regulation) (OJ EU L 119 of 04.05.2016, p. 1, OJ EU L 127 of 23.05.2018, p. 2, and OJ EU L 74 of 04.03.2021, p. 35), after conducting administrative proceedings regarding the imposition of an administrative monetary penalty on Ms. B. P., conducting business under the name P., the President of the Personal Data Protection Office, issues a reprimand to Ms. B. P., conducting business under the name P., for violating the provisions of Article 31 and Article 58(1)(a) and (e) of the Regulation of the European Parliament and of the Council (EU) 2016/679 of April 27, 2016, on the protection of natural persons in relation to the processing of personal data and on the free movement of such data and repealing Directive 95/46/EC (OJ EU L 119 of 04.05.2016, p. 1, OJ EU L 127 of 23.05.2018, p. 2, and OJ EU L 74 of 04.03.2021, p. 35), hereinafter referred to as the "Regulation 2016/679", consisting of a lack of cooperation with the President of the UODO in the performance of his duties and failing to provide the President of the UODO with access to personal data and information necessary for the performance of his tasks.

Justification

Fact State

The Personal Data Protection Office (hereinafter: "UODO") received a complaint from Ms. M. P., residing in Ł. (hereinafter: "the Complainant"), regarding irregularities in the processing of her personal data by Ms. B. P., conducting business under the name P. (hereinafter referred to as "the Entrepreneur"), consisting of disclosing the Complainant's personal data in the form of an email address in an email correspondence dated [...] May 2021 to third parties.

The President of the Personal Data Protection Office (hereinafter "the President of UODO") in the course of the initiated administrative proceedings aimed at examining the submitted complaint (under reference [...]), by letter dated [...] October 2021, requested the Entrepreneur to respond to the content of the complaint and to provide answers to the following questions:

1. In connection with the business activity conducted under the name P., are you the manager of the common property of the Housing Community [...] - if so, on what legal basis - please send a copy of the documentation in this regard (copy of the resolution of the housing community or a copy of the agreement concluded with the community),
2. Has an agreement for the processing of data of the members of the community referred to in point 1 been concluded between you and the housing community - if so, please send a copy of it,
3. Do you process the Complainant's personal data in the form of an email address, and if so, on what legal basis and for what purpose,
4. In connection with the management of the aforementioned common property, did you disclose the Complainant's personal data in the form of an email address in the email correspondence dated [...] May 2021 to third parties, and if so, on what legal basis and for what purpose.

Since the Entrepreneur did not respond to the aforementioned letter, the President of UODO, by letter dated [...] November 2021, again requested the Entrepreneur to respond to the content of the complaint and to provide answers to the aforementioned questions. Both the letter dated [...] October 2021 and the letter dated [...] November 2021 were delivered to the Entrepreneur in the manner provided for in the Code of Administrative Procedure.

The Entrepreneur provided explanations only by letter dated [...] January 2022 (after prior contact by phone from a UODO employee), however, these explanations were brief and imprecise, and consequently - were insufficient for the President of UODO to issue an administrative decision in the aforementioned matter. Therefore, again by letters dated [...] February 2022 and [...] April 2022, the Entrepreneur was requested to supplement the previously submitted explanations. These letters were received by the Entrepreneur, but he did not respond to them.

The above circumstances of the factual state were established by the President of UODO based on the official correspondence conducted between the Entrepreneur and the President of UODO, which is in the case files under reference [...]. This correspondence reflects the entirety of attempts by the President of UODO to gain access to information necessary for the performance of his tasks, that is in this case - to examine the case under reference [...], and on the other hand - the Entrepreneur's reaction to the President of UODO's requests.

Due to the failure of the Entrepreneur to provide the information necessary to resolve the case under reference [...], the President of UODO, by letter dated [...] August 2022... the purpose of mitigating the damage and on any previous infringements by the administrator or processor.

In light of the above considerations, the President of the Personal Data Protection Office has determined the following.

****Legal Justification****

According to Article 57(1)(a) of the GDPR, the President of the Personal Data Protection Office – as the supervisory authority within the meaning of Article 51 of the GDPR – monitors and enforces the application of this regulation within its territory. As part of its competencies, the President of the Personal Data Protection Office examines, among other things, complaints lodged by data subjects, conducts proceedings regarding these complaints to the appropriate extent, and informs the complainant of the progress and results of these proceedings within a reasonable time (Article 57(1)(f)).

To enable the realization of such defined tasks, the President of the Personal Data Protection Office has a number of specific powers outlined in Article 58(1) of the GDPR, including the power to order the controller and the processor to provide any information necessary for the performance of its tasks (Article 58(1)(a)) and the power to obtain from the controller and the processor access to all personal data and all information necessary for the performance of its tasks (Article 58(1)(e)). It should also be noted that the controller and the processor are obliged to cooperate with the supervisory authority in the performance of its tasks, as stipulated in Article 31 of the GDPR.

A breach of the provisions of Regulation 2016/679, consisting of the failure of the controller or processor to provide access to the data and information mentioned above, resulting in a violation of the rights of the authority specified in Article 58(1) (including the right to obtain data and information necessary for the performance of its tasks), is subject – in accordance with Article 83(5)(e) in fine of Regulation 2016/679 – to an administrative fine of up to €20,000,000, or in the case of an enterprise – up to 4% of its total annual worldwide turnover from the previous financial year, with the higher amount applying. On the other hand, a breach of the provisions of Regulation 2016/679, consisting of a lack of willingness to cooperate with the supervisory authority in the performance of its tasks (Article 31), is subject – in accordance with Article 83(4)(a) of Regulation 2016/679 – to an administrative fine of up to €10,000,000, or in the case of an enterprise – up to 2% of its total annual worldwide turnover from the previous financial year, with the higher amount applying.

The President of the Personal Data Protection Office, acting under Article 58(2)(b) of Regulation 2016/679, may also consider it justified to issue a reprimand to the controller regarding the identified violation of Article 31 in connection with Article 58(1)(e) of Regulation 2016/679. According to Recital 148 of Regulation 2016/679, to make the enforcement of the provisions of the regulation more effective, sanctions, including administrative fines, should be imposed for violations, in addition to or

instead of appropriate measures imposed under this regulation by the supervisory authority. If the violation is minor, the monetary penalty may be replaced by a reprimand. However, due consideration should be given to the nature, gravity, and duration of the violation, whether the violation was intentional, and the actions taken to mitigate the damage and any previous infringements by the controller or processor.

****Minimization of harm, to the degree of liability or any relevant prior violations, to the manner in which the supervisory authority became aware of the violation, to compliance with measures imposed on the controller or processor, to the application of codes of conduct, and any other aggravating or mitigating factors.****

Referring the above provisions of Regulation 2016/679 to the established factual state in this case, it should be noted that the Entrepreneur, as a party to the proceedings conducted by the President of the Personal Data Protection Office (UODO) under reference number [...], violated Article 31 of the GDPR by failing to cooperate with the President of UODO in the performance of his tasks, as well as Article 58(1)(a) and (e) of the GDPR by failing to provide the President of UODO with access to information necessary for the fulfillment of his tasks – in this case, for the substantive resolution of the matter. However, in response to the information about the initiation of administrative proceedings in the case with reference number DKE.561.23.2022, the Entrepreneur submitted explanations allowing the President of UODO to continue the proceedings in the case with reference number [...]. According to the President of UODO, the actions of the Entrepreneur undoubtedly resulted in a lack of access to all information necessary for the substantive resolution of the Complainant's case, and the justification presented by the Entrepreneur for the lack of response to the calls from the President of UODO does not relieve him of responsibility for the established omission. However, the reasons indicated by the Entrepreneur for the lack of cooperation with the supervisory authority should be considered credible and significantly influential in assessing the behavior of the Entrepreneur in the context of the choice of sanction applied to him in these proceedings.

In the opinion of the President of UODO, the aforementioned violation was unintentional. All circumstances of the case, considered collectively, allow for the conclusion that the lack of response from the Entrepreneur to the calls for explanations was not intentional but resulted primarily from an overload of necessary obligations related to the management of the Housing Community [...], which coincided at the same time with the obligation to provide the data protection authority with detailed supplementary explanations. The Entrepreneur immediately contacted UODO to provide the explanations necessary for the further conduct of the proceedings under reference number [...], as well as to explain why he had remained silent in this proceeding.

In the opinion of the President of UODO, the subsequent, active attitude of the Entrepreneur indicates his willingness to continue cooperating with the authority. At this point, it should also be noted that the mere initiation of proceedings regarding the imposition of an administrative monetary penalty and the real prospect of imposing an administrative monetary penalty became a clear signal for the Entrepreneur that further evasion of the obligations imposed by the provisions of Regulation 2016/679 would inevitably lead to the application of the most severe sanctions provided for by those provisions.

The President of UODO concluded that in this case, issuing a reprimand, in light of the criteria specified in Article 83(2) of Regulation 2016/679, would be sufficient and at least as "effective, proportionate, and deterrent" as imposing a monetary penalty. It should also be noted that in the event of a similar occurrence in the future, any reprimand issued by the President of UODO against the Entrepreneur will be taken into account when assessing the grounds for the potential imposition of an administrative penalty, in accordance with the principles specified in Article 83(2) of Regulation 2016/679.

In this factual and legal state, the President of UODO decided as stated in the operative part of this decision.

****Instruction****

The decision is final. The party has the right to appeal the decision to the Provincial Administrative

Court in Warsaw within 30 days from the date of its delivery, through the President of UODO (address: ul. Stawki 2, 00 - 193 Warsaw). The fee for the appeal is 200 PLN. In proceedings before the Provincial Administrative Court, the party has the right to apply for legal aid, which includes exemption from court fees and the appointment of a lawyer, legal advisor, tax advisor, or patent attorney. Legal aid may be granted upon the party's application submitted before the initiation of proceedings or during the proceedings. The application is exempt from court fees.

****Print Article****

****Metadata****

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